City of Aurora

Finance/Purchasing & Contracts
15151 E. Alameda Parkway
Suite 5700
Aurora, Colorado 80012
Phone: 303.739.7100
www.auroragov.org

INVITATION FOR BIDS: B-4799
CATEGORY NO.: 67554,95845, 98872
DATE: October 27, 2026

BID DEADLINE: 2:00 p.m. MT, November 13, 2026

INVITATION FOR BID

Bid Submittals
Bids shall be submitted electronically only through the Rocky Mountain E-Purchasing System (BidNet) at www.bidnetdirect.com/colorado no later **than 2:00 p.m. MT, November 13, 2026.** Bids received using another method such as email, mail, or hand delivery will not be accepted or considered. Late bids will not be accepted.

If assistance is needed regarding BidNet registration or bid uploading, contact BidNet's Vendor support at 1.800.835.4603 or email: e-procurementsupport@bidnet.com.

Note: BidNet file size is limited to 500MB per file. Should your bid submission exceed that size, make sure to split the document to accommodate the limitation and upload multiple documents if necessary. For any questions or issues contact vendor support referenced above.

Questions
Written questions regarding this Invitation for Bids shall be emailed to Zac Felts, Procurement Agent, at Zfelts@auroragov.org by 4:00 PM on November 06, 2026. It is preferred that all questions be sent with the subject title: Ash Tree Treatment (B-4799).

Questions received by the deadline will receive a written response in the form of an addendum that will be posted on BidNet under the same location as the original bid and numbered accordingly.

BIDS SHALL BE PREPARED AND WILL ONLY BE ACCEPTED ON FORMS SUPPLIED BY THE CITY OF AURORA, COLORADO.

Bids shall consist of:

Ash Tree Treatment

The City seeks a Contractor to provide Ash Tree Treatment for the Aurora Parks, Recreation & Open Space Department. All work shall be performed in accordance with the specifications provided.

Tentative Schedule of Activities	Date and Time
Published on BidNet	October 27, 2026
Pre-Bid Meeting	October 30, 2026 at 3:30 p.m. MT
Written Question Deadline	November 06, 2026 by 4:00 p.m. MT
Addendum Issued (Estimate)	November 10, 2026
Bid Submission Deadline	November 13, 2026 by 2:00 p.m. MT
Bid Opening via Conference Call	November 13, 2026 2:30 p.m. MT
Award Actions Completed (Estimate)	Week of November 23, 2026
Start Date for Work (Estimate)	November 30, 2026

Pre-Bid Meeting

A non-mandatory pre-bid conference will be held online using Microsoft Teams. Interested Contractors who want to attend the meeting can do so by using the following link. The purpose of the pre-bid conference is to aid prospective Contractors in the interpretation of the IFB, Scope of Services, Service Agreement, Insurance Requirements, and any other technical and contractual matters. Attendance at the pre-bid conference is not mandatory but recommended.

Microsoft Teams Need help?
Join the meeting now
Meeting ID: 287 363 028 231 531 8
Passcode: X7hW6Ap3
Dial in by phone
+1 720-388-8447,,110123827#United States, Aurora

Bid Opening

Shortly after the bid closing time, bids will be read aloud via Microsoft Teams. Attendance is not mandatory but highly recommended. This event will be held online (virtually) using Microsoft Teams, please use the following meeting information to join:

Microsoft Teams Need help?
Join the meeting now
Meeting ID: : 277 694 256 927 197 3
Passcode: xa2ng7uL
Dial in by phone
+1 720-388-8447,,481991249#

Conditions of Award

It is the intent of the City to award to the lowest responsible bidder provided the bid has been submitted in accordance with the requirements of the bidding documents, judged to be fair and reasonable, and does not exceed the appropriated funds available. The City shall be the sole judge of the bidder's qualifications, and whether the bid is in the best interests of the City.

The City may conduct such investigations as the City considers necessary to assist in the evaluation of any bid and to establish the responsibility, qualifications and financial ability of the bidders and award in accordance with the bidding documents to the City's satisfaction within the prescribed time. The City may consider, but not be limited to operating costs, maintenance requirements, performance data, and guarantees of materials and equipment as part of its evaluation.

The City shall have the right in its sole discretion to terminate the award with or without cause.

This "Invitation for Bids" shall be incorporated in the award by reference. No other documents, agreements, contracts, or addenda will be a part of this bid and/or award, unless authorized through the Office of Purchasing Services.

In determining the lowest dollar bid, the City will consider all acceptable bids on a basis of the net price to be paid after deduction of the discount specified by the bids.

The City of Aurora is exempt from State and Federal taxes and will provide tax exemption documents to vendors upon request

Award
Award will be made to the responsive, responsible low bidder whose offer conforms to the requirements of the Invitation for Bids.

Period of Award
Contract will be for a period of one (1) year with the option to renew for (4) four additional one year terms under the same terms and conditions.

Extensions
If the City desires to extend the contract, not later than thirty days prior to expiration, the City shall send a notice in writing to the vendor requesting firm pricing for the next twelve-month period. After the City receives the option year renewal pricing it will determine whether to extend the contract. All awards and extensions are subject to annual appropriation of funds. The provisions of the foregoing paragraphs with respect to the extension of any term of the contract shall be null and void if the contract has been terminated or revoked during the initial term or any extension thereof.

Availability of Funds for Next Calendar Year
Funds are currently not available for the award beyond this current calendar year. Therefore, the City is not obligated under this IFB beyond this current calendar year. This provision is notwithstanding any other provision of the Invitation for Bid addressing or affecting the contract period.

Licenses
The successful Contractor, without additional expense to the City, shall be responsible for obtaining any necessary licenses and for complying with any applicable federal, state, and municipal laws, codes and regulations in connection with the execution of the services. The successful Contractor and any subcontractors, if applicable, will be required to obtain an Aurora Business License. The successful Contractor shall provide the Aurora Business License number(s) within the first thirty (30) days of contract award.

Contacts During the Solicitation Process
Any questions, comments, or other communications shall be directed to the City Contact noted above under section titled Questions. No other contact shall be made regarding this Invitation for Bids with any other City of Aurora staff, Council Member, Agents, Consultants, etc. during the Invitation for Bids Process. Failure to comply with this requirement may result in the offending Contractor being removed from consideration.

Contractor Acceptance of the Invitation for Bids
By submitting a bid in response to this IFB, Contractor accepts all of the conditions described in this IFB, including the Services Agreement and Insurance Requirements and agrees to abide by all final decisions made by the City.

Special Conditions
Refer to “Special Conditions” section for any/all additional terms and conditions relevant to this IFB appropriate to the City’s specific requirements and/or application.

The City of Aurora reserves the right to reject any and all bids, to waive any informalities in the bids received, and to accept the bid deemed most advantageous to the best interest of the City.

City of Aurora, Colorado

Zac Felts
Procurement Agent

Section I Scope of Services
Section II Bid Submittal Requirements
Section III Vendor Acknowledgement Form
Section IV Request for Business Size Status
Section V Open Records Request
Section VI W-9 Form
Section VII Sample Service Agreement and Insurance Requirements
Attachment A - Pricing Sheet

SPECIAL CONDITIONS

PURPOSE

It is the intent of this IFB to describe the requirements for Ash Tree Treatment in sufficient detail to secure bids from qualified Contractors. All items not specifically mentioned which are necessary to provide the specified services shall be included in the bid and shall conform in the quality of services generally provided in the industry.

Should any interested Contractor find any part of the listed specifications, terms and conditions to be discrepant, incomplete, or otherwise questionable in any respect, it is the responsibility of concerned party to notify the City Contact identified under the Questions section to obtain clarification(s). Failure to seek clarification(s) that could possibly have a negative impact on a Contractors bid shall not be the fault of the City.

SERVICE REQUIREMENTS

Performance of services in a timely manner is an important element of this bid. The successful Contractor's failure to meet the services schedule, or any other deficiencies that should arise, and given a reasonable length of time to correct said deficiencies, will be cause for termination of the order/contract by issuance of a written notification of cancellation.

PRICES

Price shall be inclusive of any/all costs associated with the execution of solicited services as specified. Pricing shall exclude all non-applicable Federal, State and City taxes. Tax Exemption Certificate will be furnished upon request.

SAMPLE SERVICE AGREEMENT

Included in this IFB is the City's Standard Service Agreement that will be required to be executed between the City and awarded Contractor(s) including minimum Insurance Requirements (Form 410-33).

INVOICING

The City's normal payment procedures are 30 days from approval of a correct invoice, and acceptance of the services provided. Therefore, the City is not obligated to accept any accelerated payment procedures on the contract that results from this bid. Any Contractor stipulating accelerated payment procedures as a condition of their bid may be considered non-responsive and removed from consideration for award.

Reimbursement will not be made for costs incurred prior to a formal award.

SUBLETTING OF CONTRACT

The successful bidder agrees not to assign or sublet in whole or part any of the contract without the prior written consent of the City.

AMENDMENTS TO THIS INVITATION FOR BIDS

The City of Aurora reserves the right to amend, by an addendum or addenda to this IFB, at any time and/or a multiple number of times prior to the date set for receipt of the submission of bids. Addenda or amendments will only be posted and updated on the Rocky Mountain E- Purchasing System located at www.bidnetdirect.com/colorado . It shall be the responsibility of bidders to obtain all addenda from the Rocky Mountain E-Purchasing System. Parties obtaining bid information from other sources do so understanding that their information may be incomplete, inaccurate, or out of date and therefore wholly unreliable from a commercial perspective. Bidders registered for the paid bidding notification service shall be notified either by fax or email depending on the service that they have subscribed to. It shall be the responsibility of prospective bidders registered for the no charge, no notification service on the Rocky Mountain E-Purchasing System to monitor the Rocky Mountain E-Purchasing System for any addenda. Failure to do so may lead to reliance on incomplete, inaccurate, or out of date information when submitting bids subjecting such bids to automatic disqualification from consideration. If revisions are of such a magnitude to warrant, in the City of Aurora's opinion, the postponement of the date for receipt of bid, an addendum will be issued announcing the new date.

It is understood that any/all changes or revisions to this Invitation for Bids will be through written addendum from the Office of Purchasing & Contracts only.

CONFIDENTIALITY

Please be aware that bids submitted to the City in response to this IFB shall be subject to the Colorado Open Records Law, Section 24-72-201, et seq., C.R.S. Any privileged or confidential information in the Contractor's bid shall be specifically identified as such by the Contractor. If any information is considered to be confidential, the Contractor shall agree to indemnify the City for any and all attorney fees the City may incur in defending the withholding of such information by signing and returning the letter found in Section VI of this IFB. Should the City receive a request for the release of any information in the Contractor's bid in accordance with the open records law, the City will review the Contractor's bid, giving consideration to the portions that the Contractor indicated contained trade secrets, privileged information, or confidential commercial, financial, geological, or geophysical data, and may release only that information which has not been identified as confidential so long as Section VI has been signed and returned by the Contractor along with the bid. Should the Contractor choose not to sign and return Section VI, all information in the Contractor's bid may be considered releasable by the City. If, in the opinion of City's legal counsel, the City is nonetheless compelled to disclose any portion of such information to anyone or else stand liable for contempt or suffer censure or penalty, the City may disclose such information without liability.

THIRD PARTY AGREEMENTS

The Contractor shall not enter into any transaction that alters the terms and conditions of this contract by assigning, subletting or transferring their obligation to any third party without written consent of the CITY (i.e. "Factoring Agreements" as prescribed by UCC (Uniform Commercial Code) C.R.S. § 4-9-607 (ii).

QUALITY CONTROL

Each Contractor shall be responsible for performing or having performed all inspections and tests necessary to substantiate that the services furnished under the awarded contract conform to contract requirements, including all applicable material requirements outlined in this Invitation for Bids.

Section I
Scope of Services

1. Background

Emerald Ash Borer (EAB) was first detected in the City of Aurora in June 2025, with an initial infestation affecting approximately 20–25 ash trees. The pest has since expanded into adjacent neighborhoods, and by 2026 the city identified 89 EAB-infected ash trees, indicating a rapidly increasing trend.

Aurora manages approximately 4,700 ash trees across parks, streetscapes, and public facilities. To preserve historically significant, mature, and high-value ash specimens, the city intends to implement a preventive treatment program beginning in September 2026.
The City's goal is to proactively treat and preserve healthy and mature ash trees in historic and strategic locations citywide.

2. Project Timeline

The project will start in November 2026, and treatment will be completed by June 2027.

3. Personnel Requirements

- Applicators must have valid Qualified Supervisor (QS) license from Colorado Department of Agriculture. Person with Qualified Operator (QO) under the supervision of QS is also eligible to administer the treatment.
- All personnel must wear company identifying uniforms with visible logos.
- All staff must be trained to perform work safely and effectively.
- Applicators must attend and pass manufacturer training for the selected product and injection equipment; proof of training must be provided.

4. General Specifications

4.1 Proposed Treatment Methods

A. *Emamectin Benzoate* (minimum 4% active ingredient)

Application: Trunk injection at the root flare using manufacturer-approved closed-system injection equipment

B. Dinotefuran (Neonicotinoid)
Formula: Safari, Transect

Application: Applied as soil drench

4.2 Tree Eligibility Requirements

a. Ash trees for the treatment will be provided by the Forestry division (all trees will be ≥12 inches DBH for trunk injection and size varies for Soil drenching)

b. DBH measured at 4.5 feet above ground using standard measurement rules.

c. Trees must have ≤20% canopy decline.

e. No Treatment will be allowed during,

- Drought stress
- Extreme heat (>90°F)
- Soil saturation or standing water
- Canopy decline >20%

4.3 Treatment Window & Method

- All treatments must follow manufacturer specifications.
- Uptake depends on transpiration; contractors must follow label guidance regarding soil moisture, temperature, and time of day.
- PROS-Forestry may conduct site visits, observe applicators, and request meetings.

- Work must minimize interference with the public; equipment must not create hazards.
- Contractor shall complete all cleanup daily.

If a property owner requests that a City tree not be treated, contractor shall refrain and record the following information:

- Name
- Phone number
- Email (if available)
- Reason for opt-out

Contractor should check the Colorado Pesticide Sensitivity Registry and comply with all requirements.

4.4 Field Operations for Trunk Injection Treatment

- Perform trunk injections according to label and City specifications
- Use only cordless drills when drilling is required
- Use high-helix, sharp bits, replaced every 100 drill sites
- Ensure equipment is:
  - Clean
  - Calibrated
  - Free of leaks
  - Sterilized weekly or immediately after treating diseased trees
- Maintain safe work zones and avoid public interference
- Prevent tripping hazards from hoses, tanks, or injection lines
- Provide five gallons of clean water on site for emergency decontamination

4.5 Field Operation for Soil Drenching Treatment

- Soil drenching shall only be performed using insecticides labeled for root-zone systemic uptake. Dinotefuran will be the preferred one.
- Treatments must be applied within the root flare and critical root zone, avoiding impervious surfaces, storm drains, and areas with runoff potential.
- Contractor shall calculate dosage strictly according to product label, based on DBH and soil conditions. DBH must be measured at 4.5 ft above grade.
- All mixing must follow label instructions, SDS requirements, and OSHA chemical-handling standards.
- Contractor shall apply solutions evenly around the base of the tree, ensuring adequate soil penetration and avoiding pooling or surface runoff.
- Contractor should also water the trees (10 gallons/dbh inch) immediately after work to ensure the uptake.
- Contractor shall clear debris, mulch, and obstructions around the root zone to ensure proper soil contact and absorption.
- Soil drenching shall not occur during rainfall events, saturated soil conditions, or when irrigation systems are actively running.
- No soil drenching may occur within buffer zones adjacent to waterways, stormwater infrastructure, or areas with high leaching potential.
- Contractor should establish a safe work zone and ensure no public access to treated areas until the soil has fully absorbed the solution.
- All soil drenching operations must comply with Environment Protection Agency (EPA) label requirements, Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) regulations, CDA Commercial Applicator licensing rules.

5. Safety Requirements

The Contractor shall ensure safe, compliant, and controlled pesticide operations for both trunk injection and soil drenching treatments. The following requirements apply to all work performed under this contract:

5.1 Regulatory & Administrative Safety

- Contractor shall provide all OSHA-required safety training and Colorado Department of Agriculture (CDA) pesticide-applicator training.
- Contractor must comply with OSHA Hazard Communication Standard (29 CFR 1910.1200).
- SDS documents must always be accessible to all employees and City representatives.
- All pesticide applications must comply with CDA pre- and post-notification requirements.
- Any injury or property damage occurring during contract work must be reported immediately; contractor is responsible for restitution.

5.2 Chemical Handling & PPE

- PPE must be properly fitted, maintained, and used according to product label and SDS requirements.
- Contractor shall maintain an emergency action plan, including spill-response procedures.
- In addition to watering requirement, contractor shall provide a minimum of five gallons of clean water at each worksite for emergency decontamination.
- Chemicals and injection equipment shall never be left unattended.
- All mixing must occur in a controlled area with spill-prevention measures and proper PPE.

5.3 Spill Prevention & Reporting

- Contractors must maintain spill-control materials on site (absorbent pads, containment supplies).

- Any spill must be contained immediately and cleaned according to SDS and regulatory requirements.
- Spills must be reported immediately to the Project Manager and applicable state authorities.
- Contractor must prevent chemical movement toward storm drains, waterways, sidewalks, or impervious surfaces.

5.4 Workplace & Field Safety Requirements

5.4.1 General Field Safety

- Contractor vehicles must display business name and phone number in lettering at least two inches high, visible from 60 feet.
- A safe work zone must be established around all treatment sites; public access must be restricted until work is complete.

5.4.2 Trunk Injection Safety

- Inspect each tree for structural stability before drilling or installing injection plugs.
- Avoid drilling into cracks, decay pockets, or previous injection sites.
- Use only manufacturer-approved closed-system injection equipment to prevent leaks and exposure.
- Maintain controlled injection pressure to avoid blowouts, backflow, or bark damage.
- Ensure injection lines and plugs are secure and leak-free throughout the procedure.
- Prevent chemical contact with bark surfaces, turf, or adjacent vegetation.
- Do not perform injections during heavy rain, high winds, or when trees are not actively transpiring.
- Keep the public away from injection equipment until all lines are removed and the site is cleared.

5.4.3 Soil Drenching Safety

- Soil drenching must not occur during rainfall, saturated soil conditions, or active irrigation cycles.
- Clear mulch, debris, and obstructions from the root zone to ensure proper soil absorption and prevent runoff.
- Apply solution slowly and evenly to avoid pooling, oversaturation, or surface flow.
- Do not apply within buffer zones adjacent to waterways or areas with high leaching potential.
- Ensure treated areas remain undisturbed until the drench is fully absorbed. Water the tree to ensure timely absorption.
- Only products labeled for soil drenching may be used.

6. *Work Volume and Locations*

6.1 Total Work Volume

The city has a total project budget of $125,000. Contractors may propose a unit price per DBH inch for both treatment methods: Trunk Injection *(Emamectin Benzoate)* and Soil Drenching *(Dinotefuran)*. The City's objective is to treat the maximum number of eligible trees within available resources. Prior to mobilization, the city will identify and provide a list of trees assigned to each treatment type. The final number of trees included in the project will be determined by the city based on treatment priorities and the contractor's proposed unit pricing.

When pricing between the two treatment methods is inconsistent—such as one method being higher and the other lower for different bidder, or when neither method's pricing is clearly the lowest— per unit rate of trunk Injection will be used as the primary basis for contractor selection, as the city intends to maximize the number of trees treated using this method. Soil Drenching will be considered a secondary option and used only for treating smaller trees when necessary.

6.2 Location of Trees

Trees will be in Parks, Street's right of way and greenbelts. City will provide a comprehensive list of trees with Location Map to the contractor in advance. Contractor needs to update the inventory and maintenance related information in ESRI based GIS system.

7. Reporting

- Contractors shall record and maintain all treatment information in accordance with applicable federal standards. Required inventory and treatment data must also be entered into the City's ESRI-based GIS system.
- In addition to maintaining treatment records as per required system, contractors shall submit a detailed list of completed work to the Project Manager at least every two weeks. Submissions may be provided via shared cloud folder or email and must accompany the corresponding invoice. Each report must include all required data fields to ensure consistency with ESRI entries and compliance with federal record-keeping standards.

Example:

SN	Address	Tree ID	Products Used	Application Date	Products Batch no	Applicator's License No	Weather Condition	Notes on Uptake or Complications

8. Contractor Responsibility for Unauthorized Work

Any work performed outside the scope, specifications, or authorized directives of this contract shall be undertaken solely at the Contractor's risk and expense. The Contractor shall bear full liability for all costs, damages, claims, or corrective actions arising from such unauthorized work, and the City shall have no obligation to compensate or reimburse the Contractor for work completed beyond the approved scope.

Section II
Bid Submittal Requirements

Interested Contractors shall be limited to twenty (20) pages, including cover letter, index and table of contents, resumes, and descriptions of similar services. City required or optional forms do not count towards the twenty (20) page limit. Please do not add extraneous brochures.

Statement of Qualification responses will only be considered from Contractors who are established in the industry, financially responsible, and have experienced personnel able to provide the services required by the City.

Information provided by your company's submittals is the basis for evaluation of each Contractors qualification. Omissions of any requested information will affect your company's overall evaluation.

BIDDER QUALIFICATIONS AND REQUIREMENTS:
Statement of Qualifications must be submitted on www.bidnetdirect.com/colorado Rocky Mountain E-Purchasing System to be considered for award. The Statement of Qualifications shall be retained by the City of Aurora and cannot be returned**. Failure to submit in the format below can deem a Contractor as non-responsive.**

1. Company Information
    a. Address (City, State and Zip)
    b. Business phone number
    c. Fax number
    d. Website
    e. Primary contact person
    f. Email Address of Primary Contact Person
    g. Company business hours
    h. The company has been in business
    i. Number of years company has been in business under current business name
    j. Number of full-time employees

2. Detailed operational structure and history of company and specific services provided related to services or other applicable experience.

3. Provide a detailed service plan that includes your firm's ability to meet the maximum number of requests (calls) per day. Include your firm's ability to meet the time constraints to schedule jobs and report completed jobs. Include your firm's process for ordering items that are not currently in stock. In addition, provide your firms ability to provide photos, bills and invoices within the time prescribed in the Scope of Work.

4. Provide the resume of the company owner and supervisor that will be assigned to the City's contract.

5. Provide a minimum of five (5) clients your firm has provided similar services for in the last three years. Include the name, address, telephone numbers, contact person and the type of business.

6. Provide the following document (Mandatory)

    - Copy of valid Qualified Supervisor (QS) license from Colorado Department of Agriculture.
    - Copy of Qualified Operator (QO) License
    - Proof of manufacturer training for the selected product and injection equipment

Section III
Contractor Acknowledgement Form (Binding Offer)

In submitting this bid, it is understood that the right is reserved by the City of Aurora to reject any and all bids, and to waive any informality in bidding.

The undersigned, having familiarized themselves with the requirements of Invitation for Bids #B-4799, issued by the City of Aurora, Colorado, hereby proposes to furnish Ash Tree Treatment to the City of Aurora in accordance with all the requirements of this bid request.

The undersigned further states that this bid is made in good faith and is not founded on, or in consequence of, any collusion, agreement or understanding between themselves and any other interested party.

Please print or type complete information under each category *with exception of signature of principal*.
Signature of Principal must be signed for bid acceptance.

PURCHASE ORDER ADDRESS	**FIRM NAME**
	PRINCIPAL'S NAME
	SIGNATURE OF PRINCIPAL
REMITTANCE ADDRESS IF DIFFERENT THAN ABOVE	**TITLE**
	DATE
	PHONE
	EMAIL
	WEBSITE ADDRESS

Section IV
Request for Business Size Status

Please provide us with the information requested below to help us do a better job of soliciting City of Aurora requirements:

The North American Industry Classification System (NAICS) code for this award is: XX

The small business size standard the City of Aurora designates for this award is
_____$XX ☒U.S. dollars ☐ Employees

Identify the business size status of your firm based on the above small business size standard:

☐ **Large Business**

☐ **Small Business Enterprise**

If your business is a Small Business Enterprise, please identify if your firm is in one of the following categories

☐ **Minority-owned Contractor**

☐ **Woman-owned Contractor**

☐ **Minority/woman-owned Contractor**

☐ **Veteran**

☐ **Disabled Veteran**

☐ **Other**

From what source did you learn about his solicitation to which you are now responding?

☐ **Website;**

☐ **Newspaper (please name the paper);**

☐ **Fax;**

☐ **Automatic notice by E-mail;**

☐ **Telephone call from buyer;**

☐ **Other (please describe):**_____

Section V
Open Records Request

City of Aurora

Finance/Purchasing &Contracts
15151 E. Alameda Parkway, Ste. 5700
Aurora, Colorado 80012
Phone: 303-739-7100
www.auroragov.org

RE: Request under the Colorado Open Records Act
IFB-B-4799 – Ash Tree Treatment

Bids submitted by Contractors in response to the City of Aurora's Invitation for Bids B-4799 are subject to the Colorado Open Records Act. Should the City receive a request for the release of any information in the Contractor's bid in accordance with the open records law, the City will review the Contractor's bid, giving consideration to the portions that the Contractor indicated contained trade secrets, privileged information, or confidential commercial, financial, geological, or geophysical data, and may release only that information which has not been identified as confidential and/or proprietary in your bid pursuant to C.R.S. 24-72-201.

By having an authorized officer of the company sign below, contractor agrees to indemnify the City of Aurora for any and all attorney fees that the City may incur in defending the withholding of such information.

_____
Company Name

_____
Name (Print or Type) and Title

_____
Signature

_____
Date

Section VI
W-9 Form

NOTE: If you have been awarded a purchase order from the City in the last 3-years, and you have had no change to your business name and/or EIN/TAX ID number, you do not need to provide this form.

Request for taxpayer identification number and certification (W-9 Form) may be found using the following link:

https://www.irs.gov/pub/irs-pdf/fw9.pdf

Section VII
Sample Service Agreement

SERVICE AGREEMENT

CITY OF AURORA
AURORA, COLORADO

TITLE: _____

FILE NO.: _____

P.O. NO.: _____

Service Agreement (REV. 10 2024)

TABLE OF CONTENTS

Section I	Contractor Responsibilities and Basic Services
Section II	The City's Responsibilities
Section III	Mutual Obligations of the City and Contractor
Section IV	Payment and Fee Schedule
Section V	Charter, Laws and Ordinances
Section VI	Termination of Contract
Section VII	Change Orders or Extensions
Section VIII	Equal Employment Opportunity
Section IX	Special Conditions
Section X	Insurance Requirements
Section XI	Examination of Records
Section XII	Indemnification
Attachment 1:	City of Aurora Insurance Requirements

A G R E E M E N T

THIS AGREEMENT, made as of the ___ day of ___ in the year 20___ by and between the CITY OF AURORA, hereinafter called the CITY, and _____ with its principal place of business at_____, hereinafter called the CONTRACTOR, WITNESSETH, that whereas the CITY intends that the CONTRACTOR, upon written authorization as hereinafter specified, shall perform services as hereinafter provided; which are in accordance with the project scope and any addenda thereto, which scope of services by this CONTRACTOR together with addenda, if any, shall become a part of this Agreement.

NOW, THEREFORE, the CITY and the CONTRACTOR for the consideration hereinafter set forth agree as follows:

SECTION I - CONTRACTOR RESPONSIBILITIES AND BASIC SERVICES

A. The CONTRACTOR agrees to perform services in connection with projects as hereinafter stated. Refer to Special Conditions where applicable.

B. All work to be performed by the CONTRACTOR shall be authorized in writing through the Office of Purchasing Services subject to award as provided by Ordinance.

C. Time of performance. The services to be performed under this Agreement shall be commenced immediately upon issuance of a Service Agreement and a Purchase Order from the CITY and shall be completed no later _____unless extended by the CITY in writing.

D. The CONTRACTOR shall inform the CITY in writing of any additional firms it intends to hire to perform work in connection with this Agreement and shall keep the CITY informed on any changes or additions to this information. The CITY will approve any additional firms prior to commencement of work per this Agreement. The CONTRACTOR shall be responsible for the performance of the additional firm(s). Nothing contained herein shall create any contractual relationship between any additional firm(s) and the CITY.

E. Scope of Work:

F. The CONTRACTOR shall be responsible for any injury to persons or damage to property to the extent arising from negligent or otherwise wrongful acts or errors and omissions of the CONTRACTOR, its agents and employees. If the CONTRACTOR knows of the damage the CONTRACTOR shall immediately notify the CITY, in writing, at their principal place of business, through the signatory to this contract. If the CITY discovers the damage, the CITY shall immediately notify the CONTRACTOR, in writing, at their principal place of business, through the signatory to this contract. Repair shall be accomplished under City direction and to City specifications so property is in as good or better condition than before damage. The CONTRACTOR shall provide the CITY with a certificate of liability coverage in accordance per the attached form 410-33.

SECTION II - THE CITY'S RESPONSIBILITIES

The CITY shall:

A. Provide full information including detailed scope as to its requirements for the services.

B. Give prompt notice to the CONTRACTOR whenever the CITY observes or otherwise becomes aware of any discrepancies in the services provided.

C. Furnish, or direct the CONTRACTOR to provide at the CITY'S expense, any necessary additional services.

D. The CONTRACTOR is not liable for delays in performance which are caused by the CITY, the CITY'S contractors, or events which are outside the control of the parties and could not be avoided by the exercise of due care.

SECTION III - MUTUAL OBLIGATIONS OF THE CITY AND CONTRACTOR

A. This Agreement does not guarantee to the CONTRACTOR any work except as authorized in accordance with Section I above, or create an exclusive contract.

B. The services and any and all interests contemplated under this Agreement shall not be assigned, sublet or transferred without the written consent of the CITY.

C. The CONTRACTOR and any and all of its personnel utilized by the CONTRACTOR under the terms of this Agreement shall remain the agents and employees of the CONTRACTOR and are not, nor shall be construed to be, agents or employees of the CITY.

D. All documents prepared in connection with these services shall become the property of the City.

E. Any information identified by the City as confidential shall be kept confidential by the CONTRACTOR.

SECTION IV - PAYMENT AND FEE SCHEDULE

It is understood and agreed by and between the parties hereto, that the CITY shall pay the CONTRACTOR for services furnished, and the CONTRACTOR shall accept as full payment for such services, amounts of money computed as follows:

A. Total Compensation: The CITY agrees to pay and the CONTRACTOR agrees to accept for the services contained in Section I contracted herein a sum not to exceed Dollars ($0.00). This amount shall include all services rendered by the CONTRACTOR under this Agreement including all travel, living and overhead expenses incurred in connection with performing the services herein except for special services authorized in writing by the CITY. The sum above stipulated shall be considered a "Not to Exceed" cost to the CITY. CONTRACTOR shall submit an invoicing schedule to be approved by the Project Manager.

B. Upon submission of CONTRACTOR invoicing to the CITY, payment shall be issued. It is to be understood and agreed that the CITY may require up to 30 days to process payment after date of receipt of invoicing.

SECTION V - CHARTER, LAWS AND ORDINANCES

The CONTRACTOR, at all times, agrees to observe all applicable Federal and State Laws, Ordinances and Charter Provisions of the City of Aurora, and all rules and regulations issued pursuant thereto, which in any manner affect or govern the services contemplated under this Agreement.

SECTION VI - TERMINATION OF CONTRACT

A. TERMINATION FOR CAUSE

In the event a material breach of this Agreement remains uncured following reasonable notice of said breach, the non-breaching Party may terminate this Agreement upon written notice specifying the effective date thereof, provided the other party shall have at least ten (10) days to cure any such alleged breach. In the event CONTRACTOR illegally discriminates among or against any person or persons, no opportunity to cure such breach need be provided by the CITY.

B. TERMINATION FOR GOVERNMENTAL CONVENIENCE

1. Change in CITY Policy. The CITY may terminate this Agreement at any time upon reasonable notice specifying the date thereof, provided the CONTRACTOR shall be compensated in accordance with this Agreement for all work performed up to the effective date of termination.

2. Non-Appropriation of Funds. The terms and conditions of this Agreement are subject to annual appropriation by the Aurora City Council.

3. The City's liability for termination of this Agreement shall not exceed the total amount of this Agreement.

C. EFFECT OF TERMINATION

1. Ownership of Work Product. In the event of termination, all finished and unfinished work product(s) prepared by CONTRACTOR pursuant to this Agreement shall become the sole property of the CITY, provided the CONTRACTOR is compensated in accordance with this Agreement for all work performed in accordance with this Agreement up to the effective date of termination. CONTRACTOR shall not be liable with respect to the CITY'S subsequent use of any incomplete work product, provided CONTRACTOR has notified the CITY in writing of the incomplete status of such work product.

2. CITY'S Right to Set-Off and other Remedies. Termination shall not relieve CONTRACTOR from liability to the CITY for damages sustained as the result of CONTRACTOR'S breach of this Agreement; and the CITY may withhold funds otherwise due under this Agreement in lieu of such damages, until such time as the exact amount of damages, if any, has been determined.

SECTION VII - CHANGE ORDERS OR EXTENSIONS

A. The CITY may, from time to time, require changes in the scope of the services of the CONTRACTOR to be performed herein. Such changes, including any increase or decrease in the amount of the CONTRACTOR'S compensation, which are mutually agreed upon by and between the CITY and the CONTRACTOR, shall be incorporated in written Change Orders or Extensions to this Contract.

B. If the CONTRACTOR determines that a request by the CITY during the course of completing the services defined herein is not included in the scope of services defined in Attachment A, the CONTRACTOR shall submit to both the CITY's Project Manager and the Manager of Purchasing Services, in writing, a claim within three (3) business days of the CITY's request or of the event that prompted the proposed change.

C. A claim is any demand, contention, or assertion by the CONTRACTOR seeking additional time or money under the contract. Claims by the CONTRACTOR must be made in writing as specified herein. Claims from the CONTRACTOR must contain all of the following:

1. A narrative statement referencing and attaching the supporting documentation and specifically describing the legal, factual and contractual basis of the claim;

2. If the claim alleges delay to the work, the claim must include the precise number of days claimed, all alleged impacts, financial or otherwise, on the work, and the specific amount of money, if any, claimed as a result of the delay as well as a detailed critical path schedule analysis illustrating that the delays claimed were on the critical path of the project;
3. If the claim alleges acceleration or constructive acceleration of the work, the claim must include the precise number of days time extension the CONTRACTOR contends it would have been entitled to receive, but for the acceleration, and the precise number of days by which the work has been accelerated. No claims for acceleration for work that is not on the critical path shall be permitted. Claims for acceleration must be accompanied by a detailed CPM analysis. Claims for acceleration shall be limited to the premium portion of labor costs incurred for overtime.

D. If the claim is for additional compensation, the claim must include a detailed calculation of the precise amount claimed with all supporting documentation. All claims must reference the specific contract provisions relied upon to support the claim. All claims must specifically reference, by name, this Section VII and the fact that the claim is being submitted under this Section VII. Any writing or other form of notice, however designated, which fails to specifically reference this Section VII, by name, shall not be deemed to constitute a valid claim hereunder.

E. Items 1, 2, 3, and 4 above shall hereinafter be referred to as the "Final Accounting." A claim must be made in writing within three (3) business days after the occurrence of the event giving rise to the claim or the right to submit a claim is waived. The CONTRACTOR shall submit all information reasonably available that is otherwise required in the Final Accounting at the time of the claim. Failure to timely provide the Final Accounting shall constitute a waiver of the claim.

F. All requests for additional time or money by the CONTRACTOR shall be considered a separate claim and shall follow the claim procedures specified above. All information required in the Final Accounting must be submitted within the time limits established herein, and no supplementation of the information shall be permitted. Any attempted reservation of the right to submit or supplement an earlier made claim shall be void.

G. After review of the claim, the CITY shall make a decision whether the CONTRACTOR is entitled to a Change Order. If in the opinion of the CITY, the CONTRACTOR is entitled to a Change Order, the Project Manager shall initiate a written Change Order. CONTRACTOR shall not proceed with the work pursuant to such claim until receipt of written approval from the Project Manager. If in the opinion of the CITY, the CONTRACTOR is not entitled to a Change Order, the CONTRACTOR shall receive notice of the decision in writing from the Project Manager within five (5) business days of receipt of the claim by the City. The CONTRACTOR may submit an appeal of the decision in writing to the Manager of Purchasing Services within five (5) days of receipt of the decision from the Project Manager.

H. Claims shall be faxed with return acknowledgement or hand delivered to the following:

And

Manager of Purchasing Services
City of Aurora
Office of Purchasing Services
15151 E. Alameda Parkway, Suite 5700
Aurora, CO 80012

SECTION VIII - EQUAL EMPLOYMENT OPPORTUNITY

A. The CONTRACTOR will not discriminate against any employee or applicant for employment on the basis of race, color, national origin, ancestry, age, sex (gender), religion, creed, or physical or mental disability. The CONTRACTOR may adhere to lawful equal opportunity guidelines in selecting employees, provided that no person is illegally discriminated against on any of the preceding bases. This provision shall govern, but shall not be limited to, recruitment, employment, promotion, demotion, and transfer, and advertising therefor; layoff or termination; rates of pay or other compensation; and selection for training, including apprenticeship. The CONTRACTOR shall post, in all places conspicuous to employees and applicants for employment, notices provided by the State of Colorado setting forth the provisions of this nondiscrimination clause.

B. All solicitations and advertisements for employees placed by or on behalf of the CONTRACTOR, shall state that CONTRACTOR is an equal opportunity employer.

C. The CONTRACTOR shall cause the foregoing provisions to be inserted in all subcontracts for any work contemplated by this Agreement or deemed necessary by CONTRACTOR, so that such provisions are binding upon each subcontractor.

D. The CONTRACTOR shall keep such records and submit such reports concerning the racial and ethnic origin of employees and of applicants for employment as the U.S., the State of Colorado, the City of Aurora, or their respective agencies may require.

E. The CONTRACTOR shall comply with such rules, regulations and guidelines as the United States, the State of Colorado, the City of Aurora, or their respective agencies may issue to implement these requirements.

F. By executing this agreement, CONTRACTOR acknowledges an understanding of and expressly agrees that all work performed under this Agreement is that of an independent contractor. An independent contractor is not a City of Aurora employee and as such is not entitled to Workers' Compensation benefits. CONTRACTOR is obligated to pay Federal and state income tax on any monies earned pursuant to the contractual relationship. It is expressly understood between the City of Aurora and CONTRACTOR that CONTRACTOR, as an independent contractor, is not entitled to unemployment insurance benefits unless unemployment compensation coverage is provided by CONTRACTOR or some entity other than the City of Aurora, Colorado.

SECTION IX - SPECIAL CONDITIONS

Not Used.

SECTION X - INSURANCE REQUIREMENTS

A. The CONTRACTOR shall provide the appropriate certificates of insurance and Worker Compensation documents, at no cost to the City, as described on Attachment #1. The CONTRACTOR further agrees and understands that they are to maintain and keep in force the appropriate insurance certificates throughout the term of this Agreement.

B. The Contractor's policy will be primary and non-contributory with respect to any and all insurance policies purchased by the City.

SECTION XI - EXAMINATION OF RECORDS

This clause applies if this contract agreement exceeds $10,000.00.

A. The Internal Auditor of the City of Aurora, or a duly authorized representative from the City of Aurora shall until three (3) years after final payment under this contract agreement have access to and the right to examine any of the contractor/contractor's directly pertinent books, documents, papers, or other records involving transactions related to this contract agreement.

B. The contractor agrees to include in first-tier subcontracts under this contract agreement a clause to the effect that the City's Internal Auditor, or a duly authorized representative from the City of Aurora shall, until 3 years after final payment under the subcontract have access to and the right to examine any of the contractor's directly pertinent books, documents, papers, or other records involving transactions related to the subcontract. "Subcontract," as used in this clause, excludes (1) purchase orders not exceeding $10,000.00 and (2) subcontracts or purchase orders from public utility services at rates established to apply uniformly to the public, plus any applicable reasonable connection charge.

C. The periods of access and examination as noted above for records relating to (1) litigation or settlement of claims arising from the performance of this contract agreement, or (2) costs and expenses of this contract agreement to which the City's Internal Auditor, or duly authorized representative from the City of Aurora has taken exception, shall continue until such appeals, litigation, claims, or exceptions are disposed of.

SECTION XII – INDEMNIFICATION

A. To the fullest extent permitted by Laws or Regulations, Contractor shall indemnify, defend and hold harmless the City and the City’s Contractor(s), their officers, directors, agents and employees from and against all Claims, damages, losses, and expenses, direct, indirect or consequential (including but not limited to fees and charges of engineers, architects, attorneys, and other professionals and court proceedings or other alternative dispute resolution costs) arising out of or resulting from the performance of the Work, provided that any such Claim, damage, loss or expense (a) is attributable to bodily injury, sickness, disease or death, or to injury to or destruction of tangible or intangible property (other than the Work itself) including the loss of use resulting there from and (b) is caused in whole or in part by any negligent act, error or omission of Contractor, any Subcontractor, any person or organization directly or indirectly employed by any of them to perform or furnish any of the Work or anyone for whose acts any of them may be liable, regardless of whether or not it is caused in part by a party indemnified hereunder or arises by or is imposed by Laws or Regulations and regardless of the negligence of any such person or entity.

B. In any and all Claims against City and City’s Contractor(s), their officers, directors, agents and employees by any employee of Contractor, any Subcontractor, any person or organization directly or indirectly employed by any of them to perform or furnish any of the Work or anyone for whose acts any of them may be liable, the indemnification obligation under the above Paragraph shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for Contractor or any such Subcontractor or other person or organization under workers’ compensation acts, disability benefit acts or other employee benefit acts.

C. Nothing herein is intended to be or shall be construed to be a waiver of the City’s governmental immunity under C.R.S. Section 24-10-101, *et seq*, as amended.

D. All representations, indemnifications, warranties and guarantees made in, required by or given in accordance with the Contract Documents, as well as all continuing obligations indicated in the Contract Documents, will survive final payment, completion and acceptance of the Work and termination or completion of the Agreement.

E. CONTRACTOR represents and warrants that CONTRACTOR will comply with Federal, State and local regulations including compliance with the American with Disabilities Act (if applicable) in the performance of the services described herein.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first above written.

CITY OF AURORA, COLORADO

By:_____
Signature

_____
Name (Type or Print)

_____
Title

_____
Date

APPROVED AS TO FORM:

_____
Assistant City Attorney

_____
Risk Manager

CONTRACTOR

By:_____
Signature

_____
Name (Type or Print)

_____
Title

_____
Date

Attachment 1
INSURANCE REQUIREMENTS

During the term of this Agreement and until final acceptance by the City of all work covered by the Purchase Order or contract, the Contractor performing services under this agreement shall provide, pay for and maintain in full force and effect the types and minimum limits of insurance, as indicated below, covering the Contractor, their employees, subcontractors or representatives, along with the activities of any and all subcontractors retained by the or the activities of anyone employed by any of them, or their representatives or anyone for whose acts they may be liable.

Commercial General Liability Insurance. The Contractor shall maintain commercial general liability insurance covering all operations by or on behalf of the Contractor on a per occurrence basis against claims for personal injury (including bodily injury and death) and property damage (including loss of use). Coverage will include, if appropriate for the scope of services: Products and Completed Operations, Contractual Liability and a Waiver of Subrogation. The City, its elected and appointed officials, employees, agents and representatives shall be named as Additional Insureds by endorsement.

Minimum limits:
$1,000,000 each occurrence
$2,000,000 general aggregate
$2,000,000 products and completed operations

Commercial Automobile Liability Insurance. The Contractor shall maintain business automobile liability covering liability arising out of the operation of any vehicle (including owned, non-owned and hired vehicles) with minimum limits of $1,000,000 combined single limit each accident.

Workers' Compensation and Employers Liability Insurance. The Contractor shall maintain Worker's Compensation Insurance with limits in accordance with the provisions of the Workers' Compensation Act, as amended, by the State of Colorado. Additionally, the Contractor shall maintain Employers Liability Insurance with minimum limits of: $1,000,000 bodily injury for each accident, $1,000,000 bodily injury by disease each employee and $1,000,000 bodily injury disease aggregate.

Subcontractor's Insurance It shall be the responsibility of the Contractor to ensure that subcontractors maintain:

A. Commercial General Liability insurance with minimum limits of $1,000,000 per occurrence, $2,000,000 general aggregate and shall name the City of Aurora as an additional insured; and

B. Worker's Compensation Insurance with limits in accordance with the provisions of the Workers' Compensation Act, as amended, by the State of Colorado and Employers Liability Insurance with minimum limits of: $1,000,000 bodily injury for each accident, $1,000,000 bodily injury by disease each employee and $1,000,000 bodily injury disease aggregate.

The Contractor is responsible for verifying that the subcontractor's insurance is in effect prior to commencement of work and throughout the time that the subcontractor performs work on the project. Any subcontractor which ceases to provide insurance coverage as set forth above must be removed from the project until such time that insurance coverage can be verified as in full force and effect.

Limits of Insurance. The total limits of general and excess liability insurance set forth above may be provided to the City using a combination of primary and excess liability insurance.

Additional Insured. The Contractor shall name the City of Aurora, its elected and appointed officials, employees, agents and representatives as additional insureds by endorsement for the Commercial General Liability, Auto Liability and Excess Liability insurance policies and the certificate of insurance will include this specific language along with a copy of the endorsement.

Certificates of Insurance. Upon the execution of this Agreement, the Contractor shall provide certificates of insurance to the City of Aurora demonstrating that at the minimum coverages required herein are in effect. Contractor agrees that the required coverages will not be reduced, canceled, non-renewed or materially changed without thirty (30) days prior written notice to the City. All certificates of insurance must be kept in force throughout the duration of the services. If any of Contractor's or its subcontractor's coverage is renewed at any time prior to completion of the services, the Contractor shall be responsible for obtaining updated insurance certificates for itself and such subcontractors from the respective insurance carriers and forwarding the replacement certificates to the City within five (5) days of the expiration date of any previously delivered certificate.

The minimum A.M. Best rating of each primary insurer shall be A- X and the minimum A.M. Best rating of each excess insurer shall be A- VIII. The Contractor shall provide copies of insurance policies to the City Risk Manager upon request.

Any of the minimum limits of insurance set out herein may be raised or lowered at the sole discretion of the Risk Manager for the City of Aurora in response to the particular circumstances giving rise to the contract. **The Contractor's policy will be primary and non-contributory with respect to any and all insurance policies purchased by the City.**

In the event that the contract involves professional or consulting services, in addition to the aforementioned insurance requirements, the contract shall also be protected by a Professional Liability Insurance policy as set forth below:

Professional Liability Insurance. The Contractor shall maintain professional liability insurance with minimum limits of Two Million Dollars ($2,000,000) per claim, covering those claims which arise out of the negligent acts or omissions of the Contractor, its Subcontractor and any other parties for whom it may be liable including without limitation, bodily injury, personal injury, property damage and including a contractual liability endorsement specifically applicable to the insurable indemnity obligations set forth herein which Professional Liability Insurance shall be carried on a claims-made basis maintained in full force and effect for the term of this Agreement and, to the extent possible, for a minimum period of Three (3) years after the completion of any and all of Contractor's Services hereunder. Any retroactive date or prior acts exclusion to which such coverage is subject shall pre-date both the date upon which any services hereunder are commenced and the date of this Agreement. In the event that coverage is renewed during the original term of any subsequent term of this agreement, endorsement(s) for the new policy(ies) shall be delivered within five (5) days after renewal.

Attachment A
Pricing Sheet

Pricing

Treatment Types	Cost /dbh inch	Remarks
Abamectin Benzoate (minimum 4% active ingredient) **Application:** Trunk injection at the root flare area using manufacturer-approved closed-system injection equipment		
Dinotefuran (Neonicotinoid) **Formula:** Safari, Transect **Application:** Soil drench including one time watering of trees after application		

Note: When pricing between the two treatment methods is inconsistent—such as one method being higher and the other lower for different bidder, or when neither method's pricing is clearly the lowest—Trunk Injection will be used as the primary basis for contractor selection, as the city intends to maximize the number of trees treated using this method. Soil Drenching will be considered a secondary option and used only for treating smaller trees when necessary.